

Franciscus Dylan Rosario,  
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

Subhi Abdelhalim;  
CSAA Insurance Exchange;  
PHILLIPS, SPALLAS & ANGSTADT LLP;  
PRIYA D. NAVARATNASINGHAM;  
ALBERTO REYNA;  
MICHAEL R. CHAMBERS;  
CARBONE, SMITH & KOYAMA;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631801**

**FRAUD ON THE COURT ROADMAP  
(BENCH HANDOUT)**

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**16-FRAUD-ON-COURT-ROADMAP (ONE-PAGE BENCH HANDOUT)**

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**THE 801 RECORD: “WHAT THIS CASE IS NOW ABOUT”**

**QUADRANT 1: THE RELIANCE**

**Feb 28, 2025 Hr’g Tr., pp. 291:26–292:7** > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that

they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." — The Court (Garrett L. Wong)

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## **QUADRANT 2: THE RULINGS PROCURED**

Because of the Court's reliance on the defense's credibility re: non-receipt, Plaintiff lost: 1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11) — Audio weaponized against Plaintiff. 2. **911 CDs Excluded** (Jan. 27, p. 38:22–25) — Primary record barred from jury. 3. **911 Transcripts "Never Admitted"** (Jan. 27, p. 39:18–24) — Context denied. 4. **Continuance Denied** (Feb. 18, p. 181) — No time to fix "surprise." 5. **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25) — Pleas for fairness ignored. 6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Plaintiff forced to "disprove" fraud. 7. **Supp. Report Excluded** (RT 7, p. 156:24–28) — Corroborating evidence barred.

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## **QUADRANT 3: THE ADMISSION**

**Apr 16, 2025 RT 7, p. 213, ll. 13–15** > "Sure. They were provided by Dolan. He has had them for whatever, sure." — Priya D. Navaratnasingham (Counsel for Defense)

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## **QUADRANT 4: THE NINE PROOFS OF RECEIPT**

1. **Aug 18, 2022:** Service by Dolan to CSK (Jessup, Tr. 139-140).
  2. **Aug 18, 2022:** Rosario depo — Chambers (CSK) present.
  3. **Sept 30, 2022:** Abdelhalim depo — Chambers (CSK) present.
  4. **May 4, 2023:** CSK → PSA file transfer (Sub of Atty).
  5. **Feb 1, 2024:** PSA subpoena for same records (Order CA1147102-021).
  6. **Feb 26, 2024:** PSA receives production from SFPD (Report 210079556).
  7. **Sept 9, 2024:** PSA receives ROGs identifying CAD logs.
  8. **Feb 18, 2025:** Jessup confirms "since 2021" (Hr'g Tr. 139:11).
  9. **Apr 16, 2025: ADMISSION OF RECEIPT** (RT 7, 213:13-15).
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## **BOTTOM BANNER: THE LEGAL DOCTRINE**

- **Fraud on the Court:** Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238; Stevenot v. Harbany (1984) 154 Cal.App.3d 1051.
- **Extrinsic Fraud:** Kulchar v. Kulchar (1969) 1 Cal.3d 467.
- **Attorney Deceit:** Bus. & Prof. Code § 6128(a); Rickley v. Goodfriend (2013) 212 Cal.App.4th 1136.
- **Anti-SLAPP Pre-emption:** Flatley v. Mauro (2006) 39 Cal.4th 299.
- **Litigation-Privilege Pre-emption:** Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232.

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**GRAVAMEN:** Defense counsel used their professional status to mislead the Court into gutting Plaintiff's case based on a known false premise of non-receipt. This is a fraud on the integrity of the judicial process.